

Believing that the voluntary repatriation of the refugees can be brought about only if a climate of confidence is created,

Convinced that further large-scale international assistance is required to meet the needs of the refugees in India and of the people of East Pakistan,

1. *Expresses its profound sympathy* with those who have suffered from the situation in the area;

2. *Endorses* the designation by the Secretary-General of the United Nations High Commissioner for Refugees to be the focal point for the co-ordination of assistance to East Pakistan refugees in India, from and through the United Nations system, as well as the Secretary-General's initiative in establishing the United Nations East Pakistan relief operation;

3. *Requests* the Secretary-General and the High Commissioner to continue their efforts to co-ordinate international assistance and to ensure that it is used to the maximum advantage to relieve the suffering of the refugees in India and of the people of East Pakistan;

4. *Appeals* to Governments, intergovernmental agencies and non-governmental organizations to intensify their efforts to assist directly or indirectly, with the collaboration of the Governments concerned, in relieving the suffering of the refugees in India and of the people of East Pakistan;

5. *Urges* all Member States in accordance with the purposes and principles of the Charter of the United Nations to intensify their efforts to bring about conditions necessary for the speedy and voluntary repatriation of the refugees to their homes.

2001st plenary meeting,
6 December 1971.

B

The General Assembly,

Recognizing the large-scale efforts undertaken for humanitarian reasons to meet the unprecedented problems confronting the international community,

Aware of the urgency and extreme seriousness of the situation of the refugees, which is assuming dangerous proportions,

Recommends that the President of the General Assembly should make a statement indicating:

(a) The concern of the international community, which has seldom been confronted with a refugee problem of such enormous dimensions as that of the refugees from East Pakistan in India;

(b) That the voluntary participation of Governments and organizations should be continued and intensified with a view to assisting the Secretary-General and his representative, and the United Nations High Commissioner for Refugees acting as the focal point, in their meritorious humanitarian action for the relief of the suffering of the refugees and of the population of East Pakistan;

(c) That the only solution to this grave refugee problem is the safe return of the refugees to their homes and that this requires a favourable climate which all persons of goodwill should work to bring about in a spirit of respect for the principles of the Charter of the United Nations.

2001st plenary meeting,
6 December 1971.

2816 (XXVI). Assistance in cases of natural disaster and other disaster situations

The General Assembly,

Bearing in mind that throughout history natural disasters and emergency situations have inflicted heavy loss of life and property, affecting every people and every country,

Aware of and concerned about the suffering caused by natural disasters and the serious economic and social consequences for all, especially the developing countries,

Also aware of the varying needs of nations experiencing such disorders, which present new challenges for international co-operation,

Concerned about the ability of the international community to come to the aid of countries in a disaster situation,

Recalling its resolutions 2034 (XX) of 7 December 1965, 2435 (XXIII) of 19 December 1968, 2608 (XXIV) of 16 December 1969 and 2717 (XXV) of 15 December 1970, and Economic and Social Council resolutions 1533 (XLIX) of 23 July 1970 and 1546 (XLIX) of 30 July 1970 on assistance in cases of natural disaster,

Expressing appreciation of the Secretary-General's comprehensive report²¹ and of its perceptive examination of all aspects of the question, and taking note of the relevant passage in his statement to the Economic and Social Council on 5 July 1971,²²

Taking note of Economic and Social Council resolution 1612 (LI) of 23 July 1971 on assistance in cases of natural disaster and other emergency situations,

Noting the study, annexed to the Secretary-General's report, on the legal status of disaster relief units made available through the United Nations,²³

Mindful of the need to strengthen and make more effective the collective efforts of the international community, and particularly the United Nations system, in the field of international disaster assistance,

Bearing in mind that assistance provided at the request of the stricken countries, without prejudice to their individual country programmes under the United Nations Development Programme, can be an effective contribution to the rehabilitation and development of the stricken areas,

Bearing in mind also that the possible response of the International Bank for Reconstruction and Development and other credit organizations and development agencies to a request from the Governments concerned for complementary assistance to the stricken areas, without prejudice to the assistance provided by those organizations for the normal development programmes of the stricken countries, can be an important element in the reconstruction and development of those areas,

Noting the competence of the United Nations and its related agencies, the United Nations Children's Fund, the United Nations High Commissioner for Refugees and the World Food Programme to render assistance in cases of natural disaster and other disaster situations,

²¹ E/4994.

²² See *Official Records of the Economic and Social Council, Fifty-first Session, 1773rd meeting.*

²³ E/4994, annex III.

Noting further the key role which the resident representatives of the United Nations Development Programme could play at the country level,

Recognizing the vital role in international relief played by the International Red Cross and other voluntary societies,

Recognizing further the necessity to ensure prompt, effective and efficient response to a Government's need for assistance, at the time of a natural disaster or other disaster situation, that will bring to bear the resources of the United Nations system, prospective donor countries and voluntary agencies,

1. *Calls upon* the Secretary-General to appoint a Disaster Relief Co-ordinator, who will report directly to him and who will be authorized, on his behalf:

(a) To establish and maintain the closest co-operation with all organizations concerned and to make all feasible advance arrangements with them for the purpose of ensuring the most effective assistance;

(b) To mobilize, direct and co-ordinate the relief activities of the various organizations of the United Nations system in response to a request for disaster assistance from a stricken State;

(c) To co-ordinate United Nations assistance with assistance given by intergovernmental and non-governmental organizations, in particular by the International Red Cross;

(d) To receive, on behalf of the Secretary-General, contributions offered to him for disaster relief assistance to be carried out by the United Nations, its agencies and programmes for particular emergency situations;

(e) To assist the Government of the stricken country to assess its relief and other needs and to evaluate the priority of those needs, to disseminate that information to prospective donors and others concerned, and to serve as a clearing-house for assistance extended or planned by all sources of external aid;

(f) To promote the study, prevention, control and prediction of natural disasters, including the collection and dissemination of information concerning technological developments;

(g) To assist in providing advice to Governments on pre-disaster planning in association with relevant voluntary organizations, particularly with the League of Red Cross Societies, and to draw upon United Nations resources available for such purposes;

(h) To acquire and disseminate information relevant to planning and co-ordinating disaster relief, including the improvement and establishment of stockpiles in disaster-prone areas, and to prepare suggestions to ensure the most effective use of available resources;

(i) To phase out relief operations under his aegis as the stricken country moves into the stage of rehabilitation and reconstruction, but to continue to interest himself, within the framework of his responsibilities for relief, in the activities of the United Nations agencies concerned with rehabilitation and reconstruction;

(j) To prepare an annual report for the Secretary-General, to be submitted to the Economic and Social Council and to the General Assembly;

2. *Recommends* that the Disaster Relief Co-ordinator should be appointed by the Secretary-General normally for a term of five years and at a level comparable to that of an Under-Secretary-General of the United Nations;

3. *Endorses* the Secretary-General's proposals for an adequate permanent office in the United Nations which shall be the focal point in the United Nations system for disaster relief matters;

4. *Recommends* that that office should be headed by the Disaster Relief Co-ordinator and located in Geneva, be a distinct element within the United Nations Secretariat and be augmented as necessary by short-term secondment of personnel for individual emergencies;

5. *Requests* the Secretary-General to prepare for the Economic and Social Council at its fifty-third session, taking into account any relevant suggestions and the experience gained by the Disaster Relief Co-ordinator, a report on any further steps which may be required to enable the Disaster Relief Co-ordinator adequately to perform the functions entrusted to him under the present resolution;

6. *Further endorses* the plan for a roster of volunteers, to be drawn from experienced staff members of the United Nations system and interested non-governmental organizations, who could be made available at very short notice;

7. *Recommends* that the Disaster Relief Co-ordinator should maintain contact with the Governments of States Members of the United Nations or members of specialized agencies or of the International Atomic Energy Agency concerning available aid in emergency situations, such as food supplies, medicines, personnel, transportation and communications, as well as advice to countries in pre-disaster planning and preparedness;

8. *Invites* potential recipient Governments:

(a) To establish disaster contingency plans with appropriate assistance from the Disaster Relief Co-ordinator;

(b) To appoint a single national disaster relief co-ordinator to facilitate the receipt of international aid in times of emergency;

(c) To establish stockpiles of emergency supplies, such as tents, blankets, medicines and non-perishable food-stuffs;

(d) To make necessary arrangements for the training of administrative and relief personnel;

(e) To consider appropriate legislative or other measures to facilitate the receipt of aid, including overflight and landing rights and necessary privileges and immunities for relief units;

(f) To improve national disaster warning systems;

9. *Invites* potential donor Governments:

(a) To respond promptly to any call by the Secretary-General or, on his behalf, by the Disaster Relief Co-ordinator;

(b) To consider and to continue offering on a wider basis emergency assistance in disaster situations;

(c) To inform the Disaster Relief Co-ordinator in advance about the facilities and services they might be in a position to provide immediately, including where possible relief units, logistical support and means of effective communication;

10. *Decides* to authorize the Secretary-General to draw on the Working Capital Fund in the amount of \$200,000 for emergency assistance in any one year, with a normal ceiling of \$20,000 per country in the case of any one disaster;

11. *Further invites* all organizations of the United Nations system and all other organizations involved to co-operate with the Disaster Relief Co-ordinator.

*2018th plenary meeting,
14 December 1971.*

2839 (XXVI). Measures to be taken against nazism and other totalitarian ideologies and practices based on incitement to hatred and racial intolerance

The General Assembly,

Recognizing that there still exist in the world convinced adherents of nazism and racial intolerance whose activities, if they are not opposed in sufficient time, could bring about a resurgence of those ideologies, which are clearly incompatible with the purposes and principles of the Charter of the United Nations, the United Nations Declaration on the Elimination of All Forms of Racial Discrimination and the International Convention on the Elimination of All Forms of Racial Discrimination, and that, accordingly, the danger of a revival or a development of new forms of nazism and racial discrimination combined with terrorism cannot be disregarded,

Considering that contemporary manifestations of resurgent nazism, like the earlier ones, combine racial prejudice and discrimination with terrorism, and that in some cases racism has been raised to the level of State policy, as in the case of South Africa,

Believing it essential, in order to remove this threat to the peace and security of peoples and to the realization of basic human rights and fundamental freedoms, to elaborate a series of urgent and effective measures which might be adopted by States with a view to suppressing the revival of nazism and preventing its revival, in any form or manifestation, in the future,

Firmly convinced that the best bulwark against nazism and racial discrimination is the establishment and maintenance of democratic institutions, that the existence of genuine political, social and economic democracy is an effective vaccine and an equally effective antidote against the formation or development of Nazi movements and that a political system which is based on freedom and effective participation by the people in the conduct of public affairs, and under which economic and social conditions are such as to ensure a decent standard of living for the population, makes it impossible for fascism, nazism or other ideologies based on terror to succeed,

Confirming that nazism and other forms of racial intolerance constitute a serious threat to the realization everywhere of human rights and freedoms and the maintenance of international peace and security,

Deeming it essential that the question of measures to be taken to combat nazism and racial intolerance should be kept under constant review by the appropriate United Nations bodies with a view to the timely and immediate adoption of the necessary measures for the complete eradication of nazism from the life of society,

1. *Condemns* all manifestations of the ideology and practice of nazism and racial intolerance, wherever they may occur;

2. *Calls upon* States to take steps to bring to light any evidence of the manifestation and dissemination of the ideology and practice of nazism and racial intoler-

ance and to ensure that they are rigorously suppressed and prohibited;

3. *Invites* all eligible States which have not yet done so to ratify and to accede to the Convention on the Prevention and Punishment of the Crime of Genocide and the Convention on the Non-Applicability of Statutory Limitations to War Crimes and Crimes against Humanity as soon as possible, and requests them to report to the General Assembly at its twenty-seventh session on the measures taken by them to comply strictly with the provisions of those Conventions;

4. *Invites* all States Members of the United Nations or members of specialized agencies to review their legislation, in the light of the provisions of the Convention on the Prevention and Punishment of the Crime of Genocide and the Convention on the Non-Applicability of Statutory Limitations to War Crimes and Crimes against Humanity, with a view to determining whether, in the light of their circumstances, further legal measures are required to eradicate for all time the danger of a revival of nazism, racial intolerance or other ideologies based on terror;

5. *Urgently calls upon* those States concerned which have not yet done so to take immediate and effective measures, including legislative measures, with due regard to the principles contained in the Universal Declaration of Human Rights, to prevent the activities of Nazi and racist organizations and groups;

6. *Appeals* to all States to prohibit activity by organizations propagating concepts of nazism and racial superiority;

7. *Urges* those States which are unable, for serious constitutional or other reasons, to implement immediately and fully the provisions of article 9 of the United Nations Declaration on the Elimination of All Forms of Racial Discrimination and article 4 of the International Convention on the Elimination of All Forms of Racial Discrimination—both of which condemn and outlaw all propaganda and all organizations based on ideas or theories of the superiority of one race or group of persons of one colour or ethnic origin, or which attempt to justify or promote racial hatred and discrimination in any form—to take measures designed to ensure the speedy disbandment and disappearance of such organizations, these measures to provide, *inter alia*, that:

(a) Such organizations should not be allowed to receive financial subsidies from organs of the State, private companies or individuals;

(b) Such organizations should not be allowed the use of public premises in which to establish their headquarters or conduct meetings of their members, the use of streets and squares in populated areas for holding demonstrations, or the use of public information media for disseminating propaganda;

(c) Such organizations should not be allowed to form militarized detachments on any pretext, and offenders should be subject to prosecution in the courts;

(d) Persons employed by the State, particularly in the armed forces, should not be permitted to belong to such organizations;

and all these measures to be taken only in so far as they are compatible with the principles of the Universal Declaration of Human Rights;

8. *Requests* the United Nations Educational, Scientific and Cultural Organization, the International Labour Organisation and other specialized agencies to consider, within their respective spheres of competence,